



At the term of the Family Court of the State of New York, held in and for the County of Westchester, at 111 Dr. Martin Luther King, Jr. Blvd., White Plains, New York 10601, on April 6, 2021.

FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

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In the Matter of a Proceeding Under
Articles 6 and 8 of the Family Court Act

TARA WALSH,
Petitioner/Respondent,

-against-

STEPHEN G. RUSSELL,
Respondent/Petitioner.
-----X

File No.: 154703

Docket Nos.:¹V-07641-18/19F/19G/19H/20M/21O;
O-12635-19/19B/19C/20F;
O-01070-21

DECISION AND ORDER
(Upon Motion)

Max Di Fabio, Esq., counsel for the Respondent, Stephen G. Russell, having filed a Motion, dated March 24, 2021, requesting that the undersigned recuse himself from the above-referenced matter based on what counsel perceives to be “persistent hostility and personal animus” toward counsel by the undersigned which counsel claims creates “an appearance of impropriety” requiring recusal pursuant to 22 NYCRR100.3(E)(1).

NOW, after review of the Motion, Affirmation and Memorandum of Law in Support of the Motion for Recusal (“Memorandum in Support”) and after consideration of this Court’s observations of counsel’s behavior regarding the instant proceeding and other matters whereby counsel has appeared before the undersigned, the Motion is granted.

In his Memorandum in Support, counsel purports that the undersigned has “displayed animosity” against him “in many cases” he has appeared on before the undersigned. Counsel, however, has displayed a pattern of behavior that the undersigned has found to be disrespectful, discourteous, and borderline unethical in various matters before this Court. Some of counsel’s concerning behavior includes appearing on a virtual conference in a bathrobe, conducting himself in a disrespectful and hostile fashion toward chamber staff and attempting to abandon clients after he has engaged in questionable and unproductive litigation tactics. Counsel’s actions have required this Court to make direct inquiries regarding his conduct and has forced this Court to admonish counsel on several occasions. In light of said observations and in an effort to avoid even the

¹ Notably, counsel erroneously filed his Motion under Docket No.: O-06917-18A which is not an existing docket number. Assuming counsel intended to file the Motion under Docket No. O-06917-18/18A, that matter is not currently pending. Therefore, this Court’s Order is reflective of the docket numbers currently pending before the undersigned.

slightest appearance that the undersigned cannot be impartial, the undersigned will be recusing himself from any and all matters involving Max Di Fabio, Esq.

Therefore, it is hereby

ORDERED, that the Motion, dated March 24, 2021 is granted and the undersigned is recusing himself from this matter, any and all related matters and any and all future matters involving Max Di Fabio, Esq; and it is further

ORDERED, that the matter shall be set down for further proceedings on a date and before a part to be determined by the Clerk's Office.

This constitutes the Decision and Order of the Court.

Dated: April 6, 2021
White Plains, NY

ENTER:

Hon. Wayne A. Humphrey
Judge of the Family Court

Distribution:

Christopher Weddle, Esq.
Attorney for the Petitioner

Max Di Fabio, Esq.
Attorney for the Respondent

Jennifer M. Jackman, Esq.
Attorney for the Child